

26STCV13078 26STCV13078

County: los-angeles

Division: Civil Law and Motion

Department: 413

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TENTATIVE RULING

Hearing Date: August 14, 2026

New Century Building Supplies, Inc., et al. v. Jaguar Land Rover North America, LLC, Case No. 26STCV13078

Proceeding: Defendant's Motion to Strike

Ruling: Defendant's Motion to Strike is granted with leave to amend. Plaintiffs shall file an amended complaint within 10 days of this Ruling. The Court sets an Order to Show Cause re Filing of Amended Complaint for September 15, 2026, at 8:30AM.

Defendant seeks an order striking Prayer for Relief paragraph 2: "For a civil penalty up to two times the amount of actual damages (est. \$291,634.22)," on the grounds that Plaintiff failed to allege compliance with the conditions to seeking such relief. Those conditions, under section 871.24 of the Code of Civil Procedure, require a plaintiff, at least 30 days before commencing an action seeking civil penalties under Civil Code section 1794(c), to "(1) Notify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ("VIN") of the motor vehicle, and a brief summary of the repair history and problems with the motor vehicle", and "[1](2) Demand that the manufacturer repurchase or replace the motor vehicle."

While paragraph 11 of the Complaint alleges compliance with some of the provisions of section 871.24, full compliance is not alleged. Therefore, the motion to strike is granted with leave to amend.